



File No.: EXP202307719

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

On November 7, 2024, a proposal for resolution was made, proposing the following:

FIRST: The DEPARTMENT OF UNIVERSAL HEALTH AND PUBLIC HEALTH OF THE VALENCIAN GOVERNMENT (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 16, 2023. The complaint is directed against MARINA SALUD, S.A. with NIF A97563563 (hereinafter, the defendant). The reasons on which the complaint is based are as follows: The complainant is the contracting authority within the framework of a contract related to the provision of healthcare services in the Health Department of Denia (in force since February 1, 2009). It states that the defendant (concessionaire entity), as the data processor, carries out processing of specially protected personal data under the responsibility of the Department.

It then presents a series of facts:

“- During an inspection carried out on January 19, 2023, the complainant highlighted the use of specific software. In this context, the defendant was required to present the license/support and/or service provision contracts signed with the companies owning the healthcare information systems used in the Denia Hospital, and they refused to present them.

- On January 31, 2023, the defendant was notified of the intention not to extend the contract and its consequent termination on January 31, 2024, as well as the rules for the recovery of direct management of the public service.

- On January 27, 2023, instructions were issued for the processing, access, and use of data. In the aforementioned instructions, it is indicated that the concessionaire entity will not resort to another processor without the authorization of the Department.”

In short, the complainant, suspecting that the current data processor's application is being dismantled, informs the AEPD that the defendant may be violating data protection regulations regarding the obligations of the data processor, putting at risk, in their opinion, the return of the data and the recovery of the service, just a few months before the contract's expiration, as well as the security and fundamental rights of the individuals to whom the data refers. No copy of the contract of assignment between the Department and the concessionaire entity is provided.

Along with the complaint, the following documentation is submitted:

- Instructions for data processing on behalf of third parties in accordance with Article 28 of the General Data Protection Regulation.

- Transcript of the inspection carried out dated January 19, 2023, at 11:04 hours and the minutes of the inspection carried out (**REFERENCE.1) dated January 19, 2023, at 12:45 hours, requiring the defendant to provide copies of the license, support, and/or service provision contracts signed with the owners of various applications that are detailed.

- Response from the defendant dated February 1, 2023, to the previous request indicating the following:

“That, consequently, it does not fall within the functions of the Health Inspection to request a copy of the license/support and/or service provision contracts it has signed with the companies owning the information system applications indicated in the DIGO II of this document, as requesting this information does not ultimately aim to inspect aspects related to the healthcare and public health field.”

- Request dated February 10, 2023, sent by the complainant, for them to provide the information requested on January 19, 2023, contained in the Inspection Minutes ***REFERENCE.1.

- Third request issued by the complainant dated March 29, 2023, requesting the information indicated in the first request.

- Email sent by ***COMPANY.1 on March 28, 2023, to the complainant, expressing interest in submitting a proposal in the market consultation that is going to be carried out, despite, as they state, being involved in the uninstallation of ***SYSTEM.1.

- Communication from the contracting authority (complainant) to the concessionaire of the Denia health department (defendant), regarding data processing on behalf of third parties dated April 6, 2023.

SECOND: On June 7, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate preliminary investigation proceedings regarding the facts described in the complaint.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

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28001 – Madrid

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3/24

in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Facts revealed in the complaint:

By Resolution of the Conseller of Health dated 07/02/2005, the contract for the management of public service for the provision of comprehensive healthcare in Area 12, Department of Health of Denia, was awarded to the complained company, formalizing the contract on 14/03/2005 and initiating services on 01/02/2009.

On 19/01/2023, an inspection was carried out at the Denia Hospital, attended by the Director of Information Systems and Technologies of the Denia Hospital accompanied by the Corporate Director of Information Systems of the RIBERA GROUP, to which the complained entity belongs. It was noted:

- The hospital information system used at the Denia Hospital is ***SYSTEM.1, from the company ***COMPANY.3.

- Laboratory and pathological anatomy management is carried out with the information system ***SYSTEM.2, whose owner is the company ***COMPANY.4.

- The management of anticoagulation treatment uses the system ***SYSTEM.3 from the company ***COMPANY.6 (since 19/12/2022).

- In Human Resources, the application ***SYSTEM.4 from the company ***COMPANY.1 was implemented.

- To manage the logistics of the hospital and the department, ***SYSTEM.5 was used, whose owner is ***COMPANY.1.

- Lastly, there is a contract with the company ***COMPANY.5 that manages infrastructure and telecommunications, indicating that, in the future, it could contract other new services.

During the inspection, the submission of contracts and licenses for the mentioned products was requested. (ANNEX II and III inspection report).

On 27/01/2023, in order to ensure compliance with data protection regulations, the “Instructions for the processing of data on behalf of third parties in accordance with Article 28 of the General Data Protection Regulation” were issued (ANNEX I), stating that the Conselleria is responsible for the processing of personal data and requires that the concessionaire carry out personal data processing under the responsibility of the Conselleria, acting as the data processor. This document outlines the obligations of Article 28 of the GDPR, specifies the operations to be carried out, the category and type of data, and states that the concessionaire will not engage another data processor without prior written authorization from the Conselleria. Instructions for the termination of the service are also specified.

The provision of services requires that the concessionaire carry out the processing of specially protected personal data for which the Conselleria is responsible, with the concessionaire being the data processor. On 31/01/2023, the concessionaire was notified of the intention not to extend the aforementioned contract, and the rules for the recovery of direct management of the service and elements linked to said public service were communicated.

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Dated 01/02/2023, a document was received from the concessionaire (ANNEX IV), in which they communicate their refusal to deliver the required documentation (license/assistance and/or service provision contracts signed with the companies owning the applications of the health information systems used in the Hospital of Denia and the infrastructure and telecommunications management contract). For this reason, they were requested again on 10/02/2023 (ANNEX V and Vbis), indicating the possible sanctions in case of non-compliance. Finally, a third request was made (ANNEX VI). On 28/03/2023, an email was received from the company ***EMPRESA.3. (ANNEX VII), in which, among other matters, they indicate the uninstallation of the Millennium system at the concessionaire. On 06/04/2023, MARINA SALUD was notified of the steps to follow in case they are modifying or intend to modify the current contract for data processing on behalf of third parties, which is attached as (ANNEX VIII).

All the mentioned ANNEXES correspond to the documentation provided by the complainant on 15/05/2023.

Relevant documentation provided by the complainant:

- Annex I.- Document "Instructions for the processing of data on behalf of third parties in accordance with art. 28 of the General Data Protection Regulation" from the Conselleria de Sanidad Universal i Salut Publica of the Generalitat Valenciana, dated 27/01/2023, which indicates that on February 7, 2005, the company MARINA SALUD SA was awarded the public service management contract by concession, whose object was the provision of comprehensive healthcare for Area 12, formalizing the contract on March 14, 2005.

Among these instructions, it is indicated:

The Conselleria de Sanidad is responsible for the processing of personal data, and the concessionaire entity is in charge of the processing.

The data processing includes the operations of: collection; adaptation or modification; registration; extraction; enabling access, comparison or interconnection; organization; consultation; structuring; use; conservation; communication by transmission; destruction.

Types of data: identifying and contact data (name and surname, DNI/NIE, postal address, phone numbers, email address...); personal characteristic data (sex, age, mother tongue...); health data (diagnoses, treatments, vaccines, diagnostic tests...); other sensitive data (lifestyle, family, labor, socioeconomic...); data related to sexual life; genetic data; professional data (training, qualifications...); labor data (job position, work history, remuneration...).

Categories of data: Users of the public health system.

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28001 – Madrid

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5/24

Regarding subcontracting, it is stated: "The concessionaire shall not resort to another data processor without the prior written authorization of the Conselleria." At the end of the provision of services, the concessionaire, depending on what the Conselleria determines and in accordance with these instructions, must return all personal data and, once the proper functioning of public services has been verified and prior communication from the Conselleria, delete any existing copies. The concessionaire may retain the data, duly blocked, as long as any responsibilities may arise from the processing carried out on behalf of the Conselleria. Furthermore, it must facilitate the transfer of services to the Conselleria or to the entity designated by it to take over the provision of such services when the current concession ends.

- Annex II.- Document issued by the General Directorate of Research and High Health Inspection of the Conselleria of Universal Health and Public Health of the Generalitat Valenciana regarding a health inspection at the Hospital de Denia dated January 19, 2023. This document requests the documentation related to the license and/or services of the applications/companies: ***SISTEMA.1,

***SISTEMA.2, ***SISTEMA.3, ***SISTEMA.4, ***SISTEMA.5 and Management Contract for infrastructures and telecommunications with ***EMPRESA.5 in the separate Act.

- Annex III.- Inspection Act No. ***REFERENCIA.1 from the General Directorate of Research and High Health Inspection, dated January 19, 2023. It requires that within ten days a copy of the contracts signed by MARINA SALUD SA with the companies owning ***SISTEMA.1, ***SISTEMA.2, ***SISTEMA.3, ***SISTEMA.4, ***SISTEMA.5 and Management Contract for infrastructures and telecommunications with ***EMPRESA.5 be provided.

- Annex IV.- Response dated February 1, 2023 from MARINA SALUD SA to Act No.

***REFERENCIA.1, indicating that it is not within the functions of the Health Inspection to request a copy of the contracts.

- Annex V and Vbis.- Written communication from ***PUESTO.1 dated February 10, 2023, again requesting what was requested on January 19, 2023 and reiterating the same.

- Annex VI.- Notification letter dated March 29, 2023 to MARINA SALUD SA denying the filing of the proceedings and again requesting the requested information.

- Annex VII.- Email dated March 28, 2023 sent from ***EMPRESA.1 to the Generalitat Valenciana (gva.es) highlighting the company's collaboration in the uninstallation of ***SISTEMA.1.

- Annex VIII.- Document titled "Communication from the contracting body to the concessionaire of the Health Department of Denia, regarding the processing of data on behalf of third parties" addressed to MARINA SALUD SA dated April 6, 2023, reminding the duty of the data processor to only follow the documented instructions of the data controller, any of the aforementioned changes made without the corresponding authorization would violate the instructions referred to from January 27, 2023.

C/ Jorge Juan, 6

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28001 – Madrid

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6/24

RESULT OF THE INVESTIGATION PROCEEDINGS

RIBERA SALUD SA is listed in AXESOR as a Spanish public limited company engaged in "Hospital Activities." On its website riberasalud.com, it states that it is a business group providing public and private healthcare services. Among the companies that are part of the Group is MARINA SALUD SA, and its healthcare network includes the Denia Health Hospital.

MARINA SALUD SA is listed in AXESOR as a Spanish public limited company engaged in "Hospital Activities." On its website marinasalud.es, it states that it is a healthcare company that provides public healthcare services, including to the Denia Hospital.

The Denia Hospital, on its website denia.com/hospital-marina-salud/, indicates that the Denia Health Department consists of 1 hospital, 4 integrated health centers, 8 health centers, 34 clinics, and two additional clinics during the summer. It was established in 2009.

On July 7, 2023, a request for information was sent to the accused party, and from the responses received, it is evident:

- The concessionaire has provided the "PUBLIC SERVICE MANAGEMENT CONTRACT BY CONCESSION," entered into with the Conselleria, signed on March 14, 2005 (Document No. 1), as well as the Particular Administrative Clauses and the Technical Specifications of said contract (Documents No. 2 and No. 3).

A data processing agreement has also been provided in compliance with Article 12 of the LOPD, signed by both parties on April 1, 2009 (Document No. 4). In this Agreement, there is, among others, a clause regarding the "Obligation of return and non-retention" and "Subcontracting," which states, "the responsible party empowers the processor to subcontract, in the name and on behalf of the responsible party, the processing of the data necessary for the provision of the services subject to the concession. For these purposes, the Processor will inform the Responsible party of the identity of the companies to which it intends to subcontract the services subject to the contract from which this agreement originates, as well as the services that are the subject of this subcontracting. The validity of the empowerment that the responsible party may grant (and which must be in writing in such case) will be subject to the signing of a written contract between the Processor and the subcontracted company,

which includes terms analogous to those provided in this agreement with the full content established in Article 12 of the LOPD and the express assumption by the processor in its own name and the subcontractor of joint liability for any breach of the terms of the processing by the subcontractor. The Processor must send a copy of the contract signed between the parties to the Responsible party of the file, with the Responsible party having the authority to revoke the agreement and deny the possibility of subcontracting if the applicable regulations are not complied with.

C/ Jorge Juan, 6
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28001 – Madrid
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7/24

In this case, the person in charge will be solely responsible for the destination of the information that they have communicated to the subcontractor, having to recover it ensuring that the subcontractor does not store any copies."

On January 27, 2023, the content of the contract was completed with the "Instructions for data processing on behalf of third parties in accordance with Article 28 of the General Data Protection Regulation." (Document No. 5) where it is stated that "The concessionaire will not resort to another data processor without the prior written authorization of the Conselleria."

In the Transparency Portal of the Generalitat Valenciana, through the following link

https://gvaoberta.gva.es/es/concesiones-administrativas-sanidad//documentos/UU0OMSTrPZLv/folder/162575572?p_auth=Fb4qewiS
Diligence D PLIEGO) the documents related to the concession are recorded.

- The concessionaire has provided a copy of the contracts signed with third parties, in its capacity as data processor:

- Data Protection Agreement, annexed to the contract concluded with the company ***EMPRESA.3., dated October 6, 2017, related to the use of the application ***SISTEMA.1 (Document No. 14). The annex was signed on 09/27/2018.

- Contract for the Provision of IT Services for Laboratory, concluded with the company ***EMPRESA.4, whose object is "the acquisition by MARINA SALUD of the software solution owned by ***EMPRESA.4 called ***SISTEMA.2, which will act as the Laboratory Information System (LIA) for the computerization of the clinical analysis laboratory of the new hospital in Denia" (Document No. 15).

This contract was signed on April 16, 2008. They also provide a data processing agreement, adapted to the GDPR dated May 5, 2022. (Document No. 16).

- Contract for the provision of licensing and maintenance services without hosting of the software application ***SISTEMA.3 and the APP ***SISTEMA.3, signed with the company ***EMPRESA.6 on April 12, 2022, whose object is the use of a license for the Patient Management Software and the maintenance and technical support service. Annex II contains the provisions related to the provision of service by the sub-processor. (Document No. 17).

The concessionaire states that the aforementioned subcontracting was carried out by virtue of the general power granted by the Conselleria in accordance with what is indicated in the eighth clause of the Personal Data Processing Agreement in compliance with Article 12 of the LOPD provided (Document No. 4) in which the processor is empowered for subcontracting.

- The concessionaire states that the contracts detailed below do not form part of the data processing assignment of the concession:

- Contract for the implementation of the tools ***EMPRESA.1 and ***SISTEMA.4, concluded with ***EMPRESA.7 (Document No. 6), dated 07/12/2010, the maintenance services (Document No. 7) and contract for the improvement of the operations of the user areas of the system (Document No. 8) dated 10/08/2010.

These contracts were no longer in force as of the date of the response from the reported party on 08/14/2023, since they were signed on 11/01/2009 with a validity period of four years.

C/ Jorge Juan, 6
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28001 – Madrid
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8/24

- Contract entered into with the company ***EMPRESA.8 related to the use of the tool ***SISTEMA.4 (Documents No. 9, 10) dated 03/22/2011 and updated on 05/09/22.
- Framework contract for the provision of information technology services, signed with ***EMPRESA.5 (Document No. 11), complementary personal data processing agreement (Document No. 12), and infrastructure and telecommunications services contracted within the scope of the aforementioned framework contract (Document No. 13) dated 03/17/22.
- The concessionaire has provided copies of the following documents:
- “Regulations for the recovery of the direct management of the public service of comprehensive healthcare of the Department of Health of Denia” (Document No. 18) in which the non-renewal and consequent termination of the contract, scheduled for January 31, 2024, prepared by the complainant party, is indicated.

In this document, the preparatory work for the recovery of management without impact on care is defined, and the tasks during the year prior to the termination of the contract are specified.

In this regard, the concessionaire provides a Decree dated May 10, 2023, by which the contentious-administrative appeal filed before the High Court of Justice of the Valencian Community regarding the aforementioned Regulations is admitted for processing (Document No. 19). The mentioned appeal is against a resolution dated 03/27/2023 that dismissed a request for reconsideration against the communication dated 01/31/2023 announcing the non-renewal of the healthcare management contract of the Department of Health of Denia.

- On 01/23/2024, a communication was published on the website of the Department at the address <https://www.san.gva.es/ca/web/sanidad> indicating that on February 1, 2024, the Department of Health of Denia will be managed by the Conselleria.

And on 01/24/2024, there is a publication from the Conseller of Health informing that the transition of the public management of the Denia Hospital, which will take effect on February 1, is being orderly and serene. It indicates that the Conselleria maintains a constant and fluid dialogue with the workers with whom members of the direct team of the Conselleria are carrying out the transition every day. (<https://valenciaplaza.com/marciano-gomez-afirma-transicion-hospital-denia-siendo-ordenada-serena>) (Diligence D Communication).

- On February 6, 2024, this Agency sent a written request for information to the Conselleria requesting information and documentation regarding the termination of the concession and the transfer of management of Area 12, Department of Health of Denia, which concluded on February 1, 2024.
- On February 29, 2024, a response was received from ***PUESTO.2 informing that the concessionaire has provided the requested documentation, while the aforementioned Deputy Director assures that through this documentation, it formally complies with the obligations established in the regulations on reversion and its duties as data processor on behalf of the Conselleria.

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
9/24

FOURTH: According to the report gathered from the AXESOR tool, the entity MARINA SALUD, S.A. is a company (...), established in 2005, with a business volume of ***AMOUNT.1 euros in the year 2022.

FIFTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 28 of the GDPR, classified under Article 83.4 of the GDPR.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the accused party submitted a written statement of allegations in which, in summary, it expressed, in its FIRST allegation, a relationship of the events that occurred. In the

SECOND allegation, titled, ON THE NON-EXISTENCE OF A VIOLATION OF DATA PROTECTION REGULATIONS BY MARINA SALUD, it indicated, among other things, the following:

“1. The scope of the alleged non-compliance attributed to Marina Salud.

Our represented party is accused of committing an alleged infringement of Article 28.2 of the GDPR, which states that “[t]he processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.”

The AEPD understands in the Initiation Agreement that our represented party did not communicate to the administration responsible for processing the information related to the identity of the entities with which it had subcontracted the processing of personal data, which would determine the breach of the aforementioned provision. This is based on the complaint made by the Conselleria, in which, however, it is expressly stated that it is aware of the contracts signed by our represented party that involve the engagement of a sub-processor to carry out activities involving the processing of personal data.

That is to say, the complaint focuses its ***COMPANY.6 on the fact that our represented party did not provide the complainant with a copy of the contracts entered into with such entities, but not on the lack of knowledge by the complainant of who those entities are. Likewise, its content demonstrates that our represented party did not fail in its obligation to inform the controller about the processing activities subject to subcontracting, but only that our represented party had not provided the responsible Conselleria with a copy of the aforementioned contracts.

1. Applicable regime to the contracts entered into by MARINA SALUD.

C/ Jorge Juan, 6

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28001 – Madrid

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10/24

Considering the above, it is necessary to refer to the applicable framework regarding the relationship between our client and the Conselleria at the time the contracts were signed, as well as the regime applicable to them. Regarding the relationship that linked our client with the Conselleria, in its capacity as the data controller of the data processed by MARINA SALUD, it should be noted that, at least until the adoption of the Instructions, it was governed by the Agreement on the processing of personal data in compliance with Article 12 of the LOPD, in which, as indicated, the Conselleria (as the data controller) granted our client (as the data processor) a general power of attorney for the subcontracting of those processing activities that were necessary for the proper management of the services subject to the concession.

As indicated, the Agreement expressly provided that the Conselleria authorized and, consequently, empowered Marina Salud "to subcontract, on behalf of and for the account of the controller, the processing of data necessary for the provision of the services subject to the concession."

2.

The Conselleria was aware at the time of the approval of the Instructions of the subprocessors contracted by MARINA SALUD, also stating their suitability for the purposes provided for in the RGPD and the LOPDGDD. The consequence of all this is that what is indicated in the Initiation Agreement is not aligned with reality, given that:

- The Conselleria, as the data controller, was aware at the time of filing its complaint of the subprocessors contracted by our client and the scope of the services provided by them.
- The Conselleria considered the aforementioned data processors to be suitable (i) requiring our client not to replace them with others without its authorization; and (ii) directly contracting them as data processors once the concession was reversed.

3.

The fact that our client did not provide the Conselleria with the contracts entered into with the subprocessors does not constitute a breach of personal data protection regulations.

A large part of the ***EMPRESA.6 argument put forward by the Conselleria in its complaint before the AEPD is based exclusively on the fact that our client did not provide it with a copy of the contracts

entered into with the subprocessors. However, Marina Salud considers it necessary to point out that neither the RGPD nor the LOPDGDD establishes an obligation as indicated above.

4.

The Conselleria ratifies the legality of the actions of MARINA SALUD.

In the THIRD allegation, titled ON THE VIOLATION OF THE PRINCIPLE OF PROPORTIONALITY IN DETERMINING THE SANCTION, it indicated, among other things, the following:

"[...] And indeed, in this case, the alleged non-compliance attributed to our client, already refuted in the previous allegations, would have an exclusively formal nature and would consist of not having provided the controller, at the latest by the date of the inspection that took place on January 19, 2023, that is, a few months after the signing of two."

C/ Jorge Juan, 6

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28001 – Madrid

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11/24

of the three contracts analyzed in the Initiation Agreement, the identity of the sub-processors.

"[...] the AEPD has not taken into account a fact that it is fully aware of from merely reading the file: at this moment, our represented party is not providing the services that constituted its source of income, as its corporate purpose is the management of the Health Department of Denia. However, the AEPD considers this circumstance to be entirely irrelevant, taking as a reference figure for the quantification of the sanction the turnover of our represented party in 2022, a date when it was indeed carrying out its activity as a concessionaire of the public service now reverted."

SEVENTH: Once the proposed resolution was notified in accordance with the rules established in the LPACAP, the accused party submitted a written statement of allegations in which, in summary, it expressed the ratification of what was indicated in the allegations to the initiation agreement.

From the actions carried out in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: By Resolution of the Conseller of Health dated 07/02/2005, the part denounced, MARINA SALUD, S.A. with NIF A97563563, was awarded the public service management contract for the provision of comprehensive healthcare in Area 12, Health Department of Denia, formalizing the contract on 14/03/2005 and starting the services on 01/02/2009. It is not recorded that the management contract has been renewed beyond May 25, 2022, the date until which the indefinite contracts remained in force according to DT 5th of the LOPDGDD.

SECOND: On 01/04/2009, a Personal Data Processing Agreement was formalized between the cited parties, under the contract indicated in FACT ONE, in compliance with Article 12 of the LOPD, which, in its Eighth clause, regulating subcontracting, states the following:

"The data controller empowers the processor to subcontract, on behalf and for the account of the controller, the processing of the data necessary for the provision of the services subject to the concession.

For these purposes, the processor will inform the controller of the identity of the companies from which it intends to subcontract the services subject to this subcontracting.

The validity of the empowerment that the controller may grant (which must be in writing in such case) will be subject to the signing of a written contract between the Processor and the subcontracted company, which includes terms analogous to those provided in this agreement with the full content established in Article 12 of the LOPD and the express assumption by the processor in its own name and the subcontractor of joint liability for any breach of the terms of the processing by the subcontractor....."

C/ Jorge Juan, 6

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28001 – Madrid

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12/24

Whereas the complainant party is the data controller, the Conselleria de Sanidad, and the defendant party is MARINA SALUD, S.A., the data processor.

THIRD: On 01/19/2023, an inspection was carried out by the complainant party, in which the report required the defendant party to provide copies of the licensing, assistance, and/or service provision contracts signed with the owners of various applications that were detailed, upon verifying that they were being used in the Hospital de Denia.

FOURTH: On 01/27/2023, instructions were issued by the complainant party for the processing of data on behalf of third parties in accordance with Article 28 of the GDPR, detailing, among other aspects, the following:

"The Conselleria de Sanidad is responsible for the processing of personal data and the concessionaire entity is in charge of the processing.

The data processing includes the operations of: collection; adaptation or modification; recording; extraction; enabling access; comparison or interconnection; organization; consultation; structuring; use; conservation; communication by transmission; destruction.

Type of data: identifying and contact data (name and surname, DNI/NIE, postal address, phone numbers, email address...); personal characteristic data (sex, age, mother tongue...); health data (diagnoses, treatments, vaccines, diagnostic tests...); other sensitive data (lifestyle, family, labor, socioeconomic...); data related to sexual life; genetic data; professional data (training, qualifications...); labor data (job position, work history, remuneration...).

Categories of data: Users of the public health system.

Regarding subcontracting, it states: "The concessionaire entity will not resort to another data processor without the prior written authorization of the Conselleria. At the end of the provision, the concessionaire entity, depending on what the Conselleria determines and in accordance with these instructions, must return all personal data and, once the correct functioning of the public services has been verified and prior communication from the Conselleria, delete the existing copies. The concessionaire may retain the data, duly blocked, as long as responsibilities may arise from the processing carried out on behalf of the Conselleria. Likewise, it must facilitate the transfer of services to the Conselleria or to the entity that it determines to take charge of the provision of such services when the current concession ends."

FIFTH: On 01/31/2023, the complainant party notified the defendant party of the intention not to extend the contract and its consequent termination on January 31, 2024, as well as the rules for the recovery of direct management of the public service.

SIXTH: On 02/01/2023, the complainant party received a letter from the defendant party, in which they communicated their refusal to deliver the requested documentation (copy of the contracts signed by MARINA SALUD S.A. with the companies owning ***SISTEMA.1, ***SISTEMA.2, ***SISTEMA.3, ***SISTEMA.4, ***SISTEMA.5 and the Infrastructure and Telecommunications Management Contract with C/ Jorge Juan, 6).

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13/24

***COMPANY.5.), indicating that it is not within the functions of the Health Inspection to request copies of the contracts.

SEVENTH: On April 6, 2023, the complainant notified the defendant of the document titled "Communication from the contracting authority to the concessionaire of the Health Department of Denia, regarding the processing of data on behalf of third parties," which outlines the steps to be followed in case they are modifying or intend to modify the current contract for the processing of data on behalf of third parties.

EIGHTH: Following the entry into force of the GDPR, the defendant formalized the following contracts:

- Data Protection Agreement, annexed to the contract entered into with the company ***COMPANY.3., on October 6, 2017, related to the use of the application ***SYSTEM.1 (Document No. 14). The annex was signed on September 27, 2018.

- Contract for the Provision of IT Services for Laboratory, entered into with the company

***COMPANY.4, whose purpose is “the acquisition by MARINA SALUD of the software solution owned by ***COMPANY.4 called ***SYSTEM.2, which will act as the Laboratory Information System (LIA) for the computerization of the clinical analysis laboratory of the new hospital in Denia” (Document No. 15). This contract was signed on April 16, 2008. They also provide a data processing agreement, adapted to the GDPR dated May 5, 2022. (Document No. 16).

- Contract for the provision of services for the license and maintenance without hosting of the software application ***SYSTEM.3 and the APP ***SYSTEM.3, signed with the company ***COMPANY.6 on April 12, 2022, whose purpose is the use of a license for the Patient Management Software and the maintenance and technical support service. Annex II contains the provisions related to the provision of service by the sub-processor. (Document No. 17).

The concessionaire states that the mentioned subcontracting was carried out by virtue of the general power granted by the Conselleria as indicated in the eighth clause of the Personal Data Processing Agreement in compliance with Article 12 of the LOPD provided (Document No. 4), which empowers the processor for subcontracting.

NINTH: There is no record that the data controller was informed prior to the formalization of the contracts cited in FACT EIGHT.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/24

(General Data Protection Regulation, hereinafter GDPR), grants each supervisory authority, in accordance with the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the competence to initiate and resolve this procedure to the Presidency of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that personal data processing is carried out in which the reported party is the data controller, which it performs in the exercise of its competencies and attributions.

The figure of the "data controller" is defined in Article 4.7 of the GDPR as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

For the provision of the services contemplated in the concession contract, referred to the provision of healthcare services in the Department of Health of Denia, it is required that the reported party carry out personal data processing in which it acts as the data processor. Among these processes are the collection, adaptation or modification, registration, extraction, enabling access, comparison or interconnection, consultation, structuring, use, conservation, communication by transmission, and destruction of personal data, which include categories of special data, health data (diagnoses, treatments, vaccines, diagnostic tests), data related to sexual life, or genetic data.

Article 4.8 of the GDPR understands "data processor" as "the natural or legal person, public authority,

service, or other body that processes personal data on behalf of the data controller."

The reported party acts as the data processor, as inferred from the Resolution of the Conseller of Health dated 07/02/2005, in which the reported party was awarded the public service management contract by concession (**REFERENCE.1), the object of which was the provision of comprehensive healthcare in Area 12, Department of Health of Denia. The contract was formalized on 14/03/2005, with the service start date being 01/02/2009. The provision of the services contemplated in the concession contract requires that the reported party, as the concessionaire entity, carry out personal data processing specifically.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/24

protected under the responsibility of the complaining party. In such treatments, the concessionaire entity (the reported party) acts as the data processor, pursuant to Article 4, paragraphs 7) and 8), of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter GDPR).

III

Allegations regarding the initiation agreement and proposed resolution

In response to the allegations presented by the reported entity, the following should be noted:

Regarding the allegation concerning the non-existence of a breach of data protection regulations by the reported party, it should be noted that the reported party resorted to other subprocessors based on a general authorization, as outlined in the Agreement signed between the parties in 2009, making compliance with the provisions of the second paragraph of Article 28 mandatory, which specifically refers to cases where there is a general authorization from the data controller, as is the case at hand: "In this latter case, the processor shall inform the controller of any planned changes in the incorporation or replacement of other processors, thus giving the controller the opportunity to oppose such changes."

It should be recalled that the GDPR has been mandatory since May 25, 2018, as previously indicated in the Initiation Agreement, a date prior to the inspection carried out by the complaining party on January 19, 2023, the instructions issued by the same on January 27, 2023, and the communication of non-renewal of the contract on January 31, 2023.

In this case, there is no record that the reported party, as the data processor, informed the data controller, the complaining party, of the processing contracts signed after that date with other subprocessors, and considering that the contracts entered into involve the incorporation of other subprocessors, they would fall under the category of changes provided for in Article 28.2 and should have been communicated prior to their formalization so that the controller would have had the opportunity to oppose such changes.

Furthermore, it is worth emphasizing again that the obligation to inform the controller of the identity of the companies with which subcontracting was intended already existed in the Personal Data Processing Agreement in compliance with Article 12 of the LOPD, signed on April 1, 2009, which in its Eighth clause, regulating subcontracting, stated the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/24

"The data controller empowers the processor to subcontract, on behalf of and for the account of the data controller, the processing of the data necessary for the provision of the services subject to the concession.

For these purposes, the processor will inform the data controller of the identity of the companies from

which it intends to subcontract the services subject to this subcontracting.

Therefore, what is stated in the GDPR is not new, although the infringement attributed is exclusively limited to the obligation of Article 28.2 of the contracts with the subprocessors already detailed in the Initial Agreement, which would be the following:

- Data Protection Agreement, annexed to the contract entered into with the company ***EMPRESA.3., dated October 6, 2017, related to the use of the application ***SISTEMA.1 (Document No. 14). The annex was signed on 09/27/2018.
- Contract for the Provision of IT Services for the Laboratory, entered into with the company ***EMPRESA.4, whose object is "the acquisition by MARINA SALUD of the software solution owned by ***EMPRESA.4 called ***SISTEMA.2, which will act as the Laboratory Information System (LIA) for the computerization of the clinical analysis laboratory of the new hospital in Denia" (Document No. 15). This contract was signed on April 16, 2008. They also provide a processing agreement, adapted to the GDPR, dated May 5, 2022. (Document No. 16).
- Contract for the provision of licensing and maintenance services without hosting of the software application ***SISTEMA.3 and the APP ***SISTEMA.3, signed with the company ***EMPRESA.6 on April 12, 2022, whose object is the use of a license for the Patient Management Software and the maintenance and technical support service. Annex II contains the provisions related to the provision of service by the subprocessor. (Document No. 17).

The concessionaire states that the mentioned subcontracting was carried out by virtue of the general empowerment granted by the Conselleria in accordance with what is indicated in the eighth clause of the Personal Data Processing Agreement in compliance with Article 12 of the LOPD provided (Document No. 4), in which the processor is empowered for subcontracting.

As detailed in the initial agreement, the obligation to inform persists while the relationship between the data controller and the processor is maintained, which must be carried out before the signing of the aforementioned contracts, so that in accordance with Article 28.2, the data controller has the possibility to oppose.

As the reported party already indicated in its allegations, the 5th Transitional Provision of the LOPDGDD states that "Contracts with processors entered into prior to May 25, 2018, under the provisions of Article 12 of Organic Law 15/1999, of December 13, on the Protection of Personal Data, will remain in force until the expiration date indicated therein and, in the case of having been agreed indefinitely, until May 25, 2022."

This Agency is not questioning the validity of the contracts at any time. The parties could have requested their adaptation to the GDPR, although there is no record of it."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/24

they have done. In any case, the obligation of Article 28 had to be fulfilled, but moreover, the contract already indicated that the responsible party must be informed of any subcontracts that are made.

(Agreement on the processing of personal data in compliance with Article 12 of the LOPD, which, in its Eighth clause, regulating subcontracting, states that: "The responsible party empowers the processor to subcontract, on behalf and for the account of the responsible party, the processing of the data necessary for the provision of the services subject to the concession. For these purposes, the processor will inform the responsible party of the identity of the companies from which it intends to subcontract the services subject to this subcontracting.")

In another vein, this Agency has not considered the fact that copies of the contracts entered into with these entities required during the Inspection were not provided.

Likewise, the fact that the Administration was aware of the contracts despite not having communicated them, as claimed by the reported party, is not relevant in this case.

The obligation arose when the contracts were entered into since, under the principle of proactive responsibility, the responsible party for such contracts must be in a position to demonstrate that it

fulfilled the obligation, and it has not done so.

For all the above reasons, this allegation is dismissed.

Regarding the allegation concerning the violation of the principle of proportionality in determining the sanction, it should be noted that the motivation for the proposed sanction has followed the criteria of Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD.

In this case, with respect to section a) of Article 83.2 of the GDPR, the duration of the infringement must be taken into account, and it would be considered a permanent infringement, as in permanent infringements an unlawful state is created whose cessation depends on the will of its author.

Therefore, as long as a sub-processor is being used, the obligation to inform persists, since the obligation is imposed so that the responsible party is informed, and must be informed while a sub-processor is acting.

The motivation is also fully justified, following section g) of Article 83.2 of the GDPR regarding the affected personal data, health data considered as a special category of personal data, according to Article 9 of the GDPR.

Furthermore, the criterion of section 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD has been applied for the graduation of the sanction, which highlights that the connection of the infringer's activity with the processing of personal data may be taken into account (section b), as is the case with the reported party, whose main activity is the management of the health department of Denia, and to carry it out, the processing of personal data is necessary, and in

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/24

this case involves special categories of personal data, as indicated in Article 9 of the GDPR, concerning data related to individuals' health.

The above is derived from the data obtained in the Preliminary Investigation Proceedings, which indicate the following:

"The Hospital de Denia, on its website denia.com/hospital-marina-salud/, states that the Department of Health of Denia consists of 1 hospital, 4 integrated health centers, 8 health centers, 34 clinics, and two additional clinics during the summer. It was established in 2009.

MARINA SALUD SA is listed in AXESOR as a Spanish public limited company with the activity "Hospital Activities." On its website marinasalud.es, it states that it is a healthcare company providing public health services, including to the Hospital de Denia.

RIBERA SALUD SA is listed in AXESOR as a Spanish public limited company with the activity "Hospital Activities." On its website riberasalud.com, it states that it is a business group providing public and private health services. Among the companies that are part of the Group is MARINA SALUD SA, and its healthcare network includes the Hospital de Salud de Denia."

The claim of lack of proportionality cannot succeed in this case. Firstly, let us recall that, regarding the reference used for the quantification of the sanction, the Agency has taken into account the latest available data published in the AXESOR tool, which shows a turnover of ***AMOUNT.1 euros for the year 2022.

The fine of €500,000 represents 0.3% of the turnover, considering that the GDPR allows fines of up to 2% of said turnover, it cannot be considered disproportionate, also taking into account the aggravating factors indicated, as it involves data under Article 9 of the GDPR and the entity is accustomed to processing.

It should be added that for fixed amounts, the limit would be €10 million, so with either of the two parameters, the amount is clearly within the minimum range.

On the other hand, and despite what has been claimed, the respondent has not provided any additional information justifying the indicated decrease in its turnover, the last available figure being the one used by this AEPD for the quantification of the proposed fine. Therefore, the Agency does not have elements other than those already used for the quantification of the sanction to be imposed.

Regarding what the complainant has alleged about the infringement being merely formal in nature, and therefore the amount would be disproportionate, it should be stated that this is not the case, as the lack of communication regarding the existence of subprocessors prevents the controller from adequately exercising its control powers.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

19/24

And it should not be overlooked that we are dealing with the provision of such an important public service as healthcare, where the processing of special category data is common.

The Administration cannot disregard the possible existence of subcontractors (in data protection, subprocessors) who have access to personal health data.

For all the above reasons, this claim is dismissed.

IV

Data Processor

Article 28 of the GDPR, “Data Processor,” states the following:

“1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without prior written authorization, specific or general, from the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes...”

In the case at hand, the respondent, when subcontracting the services subject to the concession, had prior written authorization of a general nature signed by the data controller when the Personal Data Processing Agreement was formalized in compliance with Article 12 of the LOPD signed on April 1, 2009. This Agreement, in its Eighth Clause, which regulates subcontracting, states the following:

“The controller empowers the processor to subcontract, on behalf of and for the account of the controller, the processing of the data necessary for the provision of the services subject to the concession. For these purposes, the processor shall inform the controller of the identity of the companies from which it intends to subcontract the services subject to this subcontracting. The validity of the empowerment granted by the controller, where applicable (and which must be in writing), shall be subject to the signing of a written contract between the Processor and the subcontracted company, which includes terms analogous to those provided in this agreement with the full content established in Article 12 of the LOPD and the express assumption by the processor in its own name and the subcontractor of joint liability for any breach of the terms of the processing by the subcontractor.....”

This agreement is signed following the existing contract between the parties for the provision of healthcare services in the Department of Health of Denia under the concession dated March 14, 2005, with the start date of services being February 1, 2009, and already in

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

20/24

At that moment, as reflected in the transcribed clause, there was an obligation to inform the data controller of the identity of the companies with which subcontracting was intended. Likewise, Article 28.2 of the GDPR is mandatory as of May 25, 2018.

In the present case, it is not recorded that the reported party has informed the data controller of the contracts signed after that date with the subprocessors.

The following have also been detailed in the PROVEN FACT EIGHT:

- Data Protection Agreement, annexed to the contract entered into with the company ***EMPRESA.3., dated October 6, 2017, related to the use of the application ***SISTEMA.1 (Document No. 14). The annex was signed on 09/27/2018.
- Contract for IT Services for Laboratory, entered into with the company ***EMPRESA.4, whose object is "the acquisition by MARINA SALUD of the software solution owned by ***EMPRESA.4 called ***SISTEMA.2, which will act as the Laboratory Information System (LIA) for the computerization of the clinical analysis laboratory of the new hospital in Denia" (Document No. 15). This contract was signed on April 16, 2008. They also provide a data processing agreement, adapted to the GDPR, dated May 5, 2022. (Document No. 16).
- Contract for the provision of license and maintenance services without hosting for the software application ***SISTEMA.3 and the APP ***SISTEMA.3, signed with the company ***EMPRESA.6 on April 12, 2022, whose object is the use of a license for the Patient Management Software and the maintenance and technical support service. Annex II contains the provisions related to the service provision by the subprocessor. (Document No. 17).

On 01/27/2023, instructions were issued by the contracting body, a series of general obligations for the processor, which are deduced from Article 28 of the GDPR and which, for the purposes of subcontracting, indicate the following:

"The concessionaire shall not resort to another processor without the prior written authorization of the Conselleria. To this end, the concessionaire must inform the Conselleria of any provision in this regard with a minimum notice of 10 business days.

In subcontracting, the subcontracting entity will also have the status of a processor, and will be obliged to comply with the obligations established in this document for the processor, including those related to international transfers, and the instructions that the Conselleria may establish.

It is the responsibility of the concessionaire to regulate the relationship with the subcontractor so that it is subject to the same conditions regarding the processing of personal data and the guarantee of the rights of the affected individuals. In case of non-compliance by the subprocessor, the concessionaire will remain fully responsible before the Conselleria for the fulfillment of its obligations as a processor. The authorizations referred to in the first paragraph of this section will be subject to the concessionaire being able to confirm the suitability of the proposed entity, specifically its knowledge, capacity, and willingness to meet the requirements imposed by both the applicable legal regulations, particularly those related to information security and the protection of personal data, as well as the instructions of the Conselleria.

For these purposes, the concessionaire must provide a responsible declaration of the suitability of the subcontractor in the terms outlined.

Likewise, in the event that the concessionaire already has subcontracting arrangements that involve the processing of personal data for which the Conselleria is responsible, they must be notified within 15 business days following the notification of these instructions."

These instructions only reiterate the obligations of the processor already contained in Article 28 of the GDPR, fully enforceable since the entry into force of the GDPR, as previously indicated. On the other hand, they were issued only a few days before communicating the non-renewal of the service management contract by the reporting party.

In accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the reported party for violation of Article 28.2 of the GDPR.

V

Classification and qualification of the infringement of Article 28.2 of the GDPR

The aforementioned infringement of Article 28.2 of the GDPR constitutes the commission of one of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;
For the purposes of the limitation period for infringements, the infringement attributed prescribes after one year, in accordance with Article 74 of the LOPDGDD, which qualifies the following conduct as minor:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
22/24

The remaining minor infractions of a merely formal nature mentioned in sections 4 and 5 of Article 83 of the GDPR are considered minor and will prescribe after one year, particularly the following:

l) The hiring by a data processor of other processors without prior authorization from the controller, or without having informed the controller about the changes made in subcontracting when legally required.

The infringement is permanent as an unlawful state has been created, the cessation of which depends on the will of its author. The infringement of this type persists by the will of the author and continues to be consummated until the unlawful situation is abandoned; for this reason, it is not considered prescribed.

VI

Proposal for sanction

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question, as well as the number of affected parties and the level of damages suffered (section a): for not informing about the three contracts made with subprocessors, the obligation to inform persists as long as a subprocessor is being used, since the obligation is imposed so that the controller is informed, and must be informed while a subprocessor is acting, from the date of signing the contracts with ***COMPANY.3 dated 27/09/18, ***SYSTEM.3 (***COMPANY.6) dated 12/04/22, and ***COMPANY.4 dated 5/5/22 (Update of a contract dated 16/04/08), until the inspection carried out by the data controller on 19/01/2023.

- The categories of personal data affected by the infringement (section g): the categories of personal data affected by the infringement are health data, which are considered special categories of data. Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in section 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

- The link between the infringer's activity and the processing of personal data (section b): the processing of personal data constitutes, in the performance of the contract with the Administration, an inherent or substantial part of the entrusted service.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions in the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
23/24

Article 28.2 of the GDPR allows for the imposition of an administrative fine of 500,000.00 euros. Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on MARINA SALUD, S.A., with NIF A97563563, for an infringement of Article 28

of the GDPR, classified under Article 83.4 of the GDPR, a fine of 500,000.00 euros (FIVE HUNDRED THOUSAND euros).

SECOND: TO NOTIFY this resolution to MARINA SALUD, S.A.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/24

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

1479-111224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

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